

Rental Agreement

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This document is provided for informational review before your rental. A personalized copy with your name, trailer, and dates will be presented for e-signature during checkout.

§1. Definitions

Agreement means this form and all rental documents. You/your/renter means the customer, authorized renter, and anyone responsible for charges. All persons included as you/your are signing to agree jointly and separately to all obligations, terms, conditions, and amounts owed under this Agreement. We/us/our means Tennessee Valley Rentals LLC. Authorized Driver means only drivers approved on this Agreement. Trailer means the non-motorized trailer rented or any substitutes. Loss of Use means our lost rental time during repair or replacement, calculated at the daily rental rate. Diminished Value means any reduction in value after damage or loss.

§2. Rental, Indemnity and Warranties

This is a trailer rental contract. We may repossess the trailer at any time and without prior notice to the extent permitted by law, if it is abandoned, overdue, or used in violation of law or this Agreement. You agree to indemnify and hold us harmless from claims, liability, costs, and attorney fees arising from this rental or your use of the trailer. The trailer is rented as-is, with no express, implied, or apparent warranties, including merchantability or fitness for particular purpose.

§3. Condition and Return

You must return the trailer to the agreed location by the agreed date and time, in the same condition received except ordinary wear. It is your responsibility before departure to inspect the trailer for its safety and condition until you accept it or report issues. Replacement equipment may be at our prior approval.

§4. Damage, Loss, Theft and Reporting

You are responsible for all damage to, loss of, or theft of the trailer and equipment, whether or not you are at fault, including weather, road conditions, vandalism, recovery, storage, Loss of Use, Diminished Value, missing equipment, and reasonable administrative expenses. If the trailer is lost, stolen, not returned, not repaired, or we reasonably elect not to repair, you are responsible for the trailer actual cash value, replacement cost, or remaining financial loss. You must report accidents, theft, damage, or loss to us and police within 24 hours.

§5. Equipment / Replacement Cost

You acknowledge receiving the listed equipment and replacement costs. If any listed item is lost, stolen, damaged, or not returned, you agree to pay the listed replacement cost, or cost of actual repair or replacement, whichever is greater. You had an opportunity to inspect the trailer, tires, hitch, lights, and equipment before accepting it.

§6. Tow Vehicle and Cargo Responsibility

You are solely responsible for confirming that your tow vehicle is legally and mechanically capable of towing the trailer and load. You are solely responsible for safe loading, weight distribution, balancing, and securing all cargo.

§7. Prohibited Uses

Prohibited uses include: transporting hazardous, dangerous, or illegal materials; transporting people; driving under the influence; use by anyone not listed as an Authorized Driver; false or misleading info at reservation; use outside the continental United States; overloading; towing under/through insufficient clearance; continued use when damage is likely; damage from misuse; or intent to criminally conceal, confiscate, or modify the trailer without written permission.

§8. Charges

You agree to pay on demand all amounts due, including rental time, taxes, traffic/toll/parking/camera citations, towing, storage, recovery, collection costs, attorney fees, 5% late payment fee if applicable, and a cleaning fee up to \$500 if returned substantially less clean than rented. If we pay a toll or citation for you, a \$100 administrative fee may apply to each charge. Early returns do not create a refund unless agreed in writing.

§9. Deposit and Payment Authorization

We may apply your deposit to any amounts owed, including our reasonable estimate of damages, administrative costs, Loss of Use, storage, and any other applicable charges. You authorize us to charge your card or payment method on file for amounts owed under this Agreement, including charges discovered after return, subject to your right to dispute them through legal routes.

§10. Late Return

The trailer must be returned by the agreed check-in date and time. Late returns are charged at the daily rental rate for each additional day or partial day, plus documented loss, expense, or reservation impact. If the trailer is overdue and we cannot obtain prompt return, we may seek recovery at your expense.

§11. Cancellation, Rescheduling, No-Show

Cancellations, rescheduling, and no-shows are governed by the booking terms provided at reservation. Unless different written terms apply, deposits or prepaid amounts may be applied to late cancellation or rescheduling fees rather than another customer. Cancellations made less than 24 hours before the scheduled rental start time may be subject to a \$25 late cancellation fee. No-shows may result in forfeiture of any deposit or prepaid amounts.

§12. GPS Tracking

For security, recovery, and fleet management, the trailer may have GPS or other tracking technology. You consent to tracking during the rental period and agree not to remove, tamper with, disable, or obscure any device.

§13. Insurance

You represent that you have valid automobile liability insurance and any required coverage for towing and using the trailer. You are responsible for confirming coverage. Providing insurance information does not mean we verified coverage or accepted responsibility for any loss.

§14. Modifications / Entire Agreement

No item can be waived or modified except in writing signed by both parties. This Agreement is the entire agreement between you and us regarding this rental, and all prior representations or agreements are merged into it.

§15. Waiver and Severability

Our waiver of any breach is not a waiver of any additional breach or future performance. Accepting payment or not exercising a right does not waive any provision. You release us from consequential, special, or punitive damages related

to this rental or reservation. If any provision is void or unenforceable, the remaining provisions stay valid and enforceable.

§16. Governing Law and Venue

This Agreement is governed by Tennessee law. Any claim or dispute related to this Agreement shall be handled in the appropriate Tennessee court in the county where Tennessee Valley Rentals LLC principally operates, unless applicable law requires otherwise.

§17. Required Photos

The renter is responsible for submitting clear before-rental and after-rental photos of the trailer and included equipment as requested by TVR. Photos should show the trailer's general condition, tires, lights, coupler, safety chains, jack, ramps/doors/gate, straps, tools, spare tire, and any existing damage. Failure to submit required before and after photos may delay deposit return and may result in partial or full forfeiture of the deposit if TVR cannot reasonably verify the trailer's condition at check-out or return.

§18. Acknowledgment

By signing, you confirm that the information provided is accurate, you have read and reviewed this Agreement, you had the opportunity to ask questions before signing, and you agree to be bound by its terms.

SIGNED BY (RENTER)

DATE

TRAILER